

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bonnie Masiello	Team: Team # 2	CCRB Case #: 200401938	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 02/29/2004 11:18 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/29/2005	Precinct: 23
Date/Time CV Reported Sun, 02/29/2004 11:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/03/2004 3:47 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christop Greiner	30355	930271	023 PCT
2. POF Maria Longford	05693	929540	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christop Greiner	Abuse: PO Christopher Greiner stopped and questioned § 87(2)(b)	A . Complainant Uncooperative
B . POF Maria Longford	Abuse: PO Maria Longford stopped and questioned § 87(2)(b)	B . Complainant Uncooperative
C . POM Christop Greiner	Force: PO Christopher Greiner used physical force against § 87(2)(b)	C . Complainant Uncooperative
D . POM Christop Greiner	Abuse: PO Christopher Greiner frisked § 87(2)(b)	D . Complainant Uncooperative

Synopsis

This case was referred to the CCRB by IAB on March 3, 2004. The complainant, § 87(2)(b) who speaks only Spanish, called 911 on February 29, 2004 to report that he was stopped and questioned by two officers, when entering his residence at § 87(2)(b) in the Bronx. (**Allegations A and B**) The officers were identified by IAB as PO Christopher Greiner and PO Maria Longford. § 87(2)(b) stated that PO Greiner threw him against a cement wall (**Allegation C**), causing a minor abrasion and bump above his eye. § 87(2)(b) was not arrested or summonsed. An ambulance responded to the location and § 87(2)(b) was transported to § 87(2)(b).

Detective Erwin Bustos from Group 9 interviewed § 87(2)(b) in Spanish at § 87(2)(b). § 87(2)(b) stated that the incident took place at approximately 2300 hours. He stated that he standing in front of § 87(2)(b) with a bag of clothing. He had called his wife from his cell phone and was waiting for her to open the door because he forgot his keys. While he was waiting, PO Greiner and PO Longford approached him and said something, but § 87(2)(b) could not understand them, as he does not understand much English. He understood that the officers wanted identification and provided his passport to PO Longford. PO Greiner grabbed § 87(2)(b) and slammed his head into a wall. § 87(2)(b) also stated that he was frisked, but not searched, by PO Greiner. (**Allegation D**)

PO Greiner filed a Stop & Frisk report in relation to this incident, which states that § 87(2)(b) was stopped on the suspicion that he was illegally in possession of a weapon. It further states that § 87(2)(b)'s actions were "indicative of casing and that he carried a suspicious object." The report stated that § 87(2)(b) was placed against a wall and frisked and that the reason for the stop was explained to him.

The CCRB investigator called § 87(2)(b) on March 11 and March 12, but there was no answer and no answering machine. Subpoenas were sent to AT&T, Verizon, and MCI on March 16 to obtain § 87(2)(b)'s apartment number. AT&T responded to the subpoena on March 19, so Spanish and English letters were sent to § 87(2)(b) on that date. The investigator also called § 87(2)(b) on March 19, 21 (a Sunday), 22, 24, and 30, with no results. On March 31, the investigator reached § 87(2)(b) who stated that he wanted to pursue an investigation and made an appointment for April 27, 2004. § 87(2)(b) did not appear on that date, but called to reschedule for the next day. Again, he failed to appear and did not call to reschedule. The investigator called § 87(2)(b)'s cell phone number, which he provided the previous day, and left a message. Spanish and English letters were also sent to § 87(2)(b) on that date. It has been over a week since § 87(2)(b) missed his appointment. He is aware that this case has been open and pending his cooperation. To date, he has not contacted the CCRB. Absent his statement, the events of February 29, 2004 are and will remain unclear. It is therefore recommended that this case be closed as "Complainant Uncooperative."

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: